

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

2. JACOB CLARK V. NICHOLE ROEMER-CLARK

24FL0798

On June 23, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. All required documents were served on August 5, 2026.

Petitioner filed and served his Responsive Declaration to Request for Order on September 2, 2026.

Respondent filed and served her reply declaration on September 10th.

Petitioner filed and served a supplemental declaration on September 14th. The court finds this to be late filed and therefore it has not been read or considered by the court.

Respondent is requesting the following orders: (1) Respondent to have final decision-making authority limited to the implementation of the minor's counseling services; (2) Neither parent shall interfere with, cancel, discourage, or obstruct the minor's counseling appointments once scheduled; (3) School day exchanges shall occur at the minor's school, non-school-day exchanges to occur at Shingle Springs Park and Ride on Rock Barn Rd.; (4) Neither parent shall delay, modify, disrupt, or withhold parenting time because of disagreements regarding exchange logistics; (5) All non-emergency co-parenting communication shall occur through Talking Parents; (6) Communications regarding school deadlines, counseling, medical appointments, exchanges, or other time-sensitive matters shall receive a response within 24 hours, and routine communications to receive a response within 48 hours; (7) Each parent shall notify the other within 48 hours of the minor participating in any extracurricular activity, the notice to include the name of the activity, provider, location, dates, and times; and (8) The minor to be enrolled in a public transitional kindergarten program for the 2026-2027 school year with either Sutter's Mill Elementary, CMP Shingle Springs, or the minor's assigned neighborhood school.

Petitioner argues that the parties have already begun the process of enrolling the minor in therapy and he thus opposes Respondent's requests. He opposes the requests regarding exchanges and asks the court to maintain its prior order that exchanges occur in Cameron Park. He does not oppose a parenting application for communications but asks that the parties utilize Our Family Wizard, which they are already using. He opposes the requested changes regarding extracurricular activities and response deadlines for communications. Finally, Petitioner asks that the minor remain enrolled in Country Day for the 2026-2027 school year.

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First and foremost, given that the minor has already begun the school year at Country Day, and given the minor's young age, the court finds the best option is for the minor to complete the 2026-2027 school year at Country Day Montessori. This will help to ensure stability in her schedule for the time being.

Regarding exchanges, the court was clear in its prior orders that the parties were to select an exchange location in Cameron Park. In keeping with that order, all non-school-day exchanges shall occur at the public parking lot located at 3943 Cambridge Rd., Cameron Park, CA. All school-day exchanges shall occur at the minor's school.

The parties are ordered to use Our Family Wizard for communications regarding the minor. The court is not inclined to impose time limits for responses to communications as they do not appear to be necessary to further the best interests of the child; but instead only a preference of Respondent's at this point.

Turning to the issue of extracurricular activities, the parties have already been ordered to notify one another of extracurricular activities regarding the minor. The parties are admonished to abide by the court's prior order regarding all extracurricular activities. Notifications are to occur no later than 48 hours prior to the time for the activity.

Regarding therapy for the minor it appears the parties have already selected a therapist; however, out of an abundance of caution, if a therapist has not yet been selected the parties are to select one forthwith. Respondent is to give Petitioner the names of three therapists for the minor no later than September 24, 2026. Petitioner shall select one of the three and inform Respondent of his selection no later than October 1, 2026. If Petitioner does not inform Respondent of his selection by October 1st then Respondent shall have final decision-making authority to select a therapist from the list. Once a therapist is selected the parties are ordered to complete all necessary intake paperwork and to schedule the minor for the earliest available appointment. The parties are ordered to follow the treatment recommendations of the therapist including the duration and frequency of appointments. Neither parent shall interfere with, cancel, discourage, or obstruct the minor's counseling appointments once scheduled .

The parties are strongly admonished to comply with the court's prior orders regarding co-parenting counseling. Many of the issues raised in Respondent's moving papers are issues that should have been addressed amongst the parties in co-parenting counseling. The parties are ordered to select a co-parenting counselor and schedule the earliest available appointment forthwith. Respondent is to provide Petitioner the names of

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three co-parenting counselors no later than September 24, 2026. Petitioner shall select one of the three and inform Respondent of his selection no later than October 1, 2026. If Petitioner does not inform Respondent of his selection by October 1st then Respondent shall have final decision-making authority to select a counselor from the list. Once a counselor is selected the parties are ordered to complete all necessary intake paperwork and to schedule the earliest available appointment. The parties are ordered to follow the treatment recommendations of the counselor including the duration and frequency of appointments.

All prior orders not in conflict with this order remain in full force and effect.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #2: THE MINOR IS TO COMPLETE THE 2026-2027 SCHOOL YEAR AT COUNTRY DAY MONTESSORI.

REGARDING EXCHANGES, ALL NON-SCHOOL-DAY EXCHANGES SHALL OCCUR AT THE PUBLIC PARKING LOT LOCATED AT 3943 CAMBRIDGE RD., CAMERON PARK, CA. ALL SCHOOL-DAY EXCHANGES SHALL OCCUR AT THE MINOR'S SCHOOL.

THE PARTIES ARE ORDERED TO USE OUR FAMILY WIZARD FOR COMMUNICATIONS REGARDING THE MINOR. THE COURT IS NOT INCLINED TO IMPOSE TIME LIMITS FOR RESPONSES TO COMMUNICATIONS.

TURNING TO THE ISSUE OF EXTRACURRICULAR ACTIVITIES, THE PARTIES HAVE ALREADY BEEN ORDERED TO NOTIFY ONE ANOTHER OF EXTRACURRICULAR ACTIVITIES REGARDING THE MINOR. THE PARTIES ARE ADMONISHED TO ABIDE BY THE COURT'S PRIOR ORDER REGARDING ALL EXTRACURRICULAR ACTIVITIES. NOTIFICATIONS ARE TO OCCUR NO LATER THAN 48 HOURS PRIOR TO THE TIME FOR THE ACTIVITY.

REGARDING THERAPY FOR THE MINOR IT APPEARS THE PARTIES HAVE ALREADY SELECTED A THERAPIST; HOWEVER, OUT OF AN ABUNDANCE OF CAUTION, IF A THERAPIST HAS NOT YET BEEN SELECTED THE PARTIES ARE TO SELECT ONE FORTHWITH. RESPONDENT IS TO GIVE PETITIONER THE NAMES OF THREE THERAPISTS FOR THE MINOR NO LATER THAN SEPTEMBER 24, 2026. PETITIONER SHALL SELECT ONE OF THE THREE AND INFORM RESPONDENT OF HIS SELECTION NO

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LATER THAN OCTOBER 1, 2026. IF PETITIONER DOES NOT INFORM RESPONDENT OF HIS SELECTION BY OCTOBER 1ST THEN RESPONDENT SHALL HAVE FINAL DECISION-MAKING AUTHORITY TO SELECT A THERAPIST FROM THE LIST. ONCE A THERAPIST IS SELECTED THE PARTIES ARE ORDERED TO COMPLETE ALL NECESSARY INTAKE PAPERWORK AND TO SCHEDULE THE MINOR FOR THE EARLIEST AVAILABLE APPOINTMENT. THE PARTIES ARE ORDERED TO FOLLOW THE TREATMENT RECOMMENDATIONS OF THE THERAPIST INCLUDING THE DURATION AND FREQUENCY OF APPOINTMENTS. NEITHER PARENT SHALL INTERFERE WITH, CANCEL, DISCOURAGE, OR OBSTRUCT THE MINOR'S COUNSELING APPOINTMENTS ONCE SCHEDULED .

THE PARTIES ARE STRONGLY ADMONISHED TO COMPLY WITH THE COURT'S PRIOR ORDERS REGARDING CO-PARENTING COUNSELING. MANY OF THE ISSUES RAISED IN RESPONDENT'S MOVING PAPERS ARE ISSUES THAT SHOULD HAVE BEEN ADDRESSED AMONGST THE PARTIES IN CO-PARENTING COUNSELING. THE PARTIES ARE ORDERED TO SELECT A CO-PARENTING COUNSELOR AND SCHEDULE THE EARLIEST AVAILABLE APPOINTMENT FORTHWITH. RESPONDENT IS TO PROVIDE PETITIONER THE NAMES OF THREE CO-PARENTING COUNSELORS NO LATER THAN SEPTEMBER 24, 2026. PETITIONER SHALL SELECT ONE OF THE THREE AND INFORM RESPONDENT OF HIS SELECTION NO LATER THAN OCTOBER 1, 2026. IF PETITIONER DOES NOT INFORM RESPONDENT OF HIS SELECTION BY OCTOBER 1ST THEN RESPONDENT SHALL HAVE FINAL DECISION-MAKING AUTHORITY TO SELECT A COUNSELOR FROM THE LIST. ONCE A COUNSELOR IS SELECTED THE PARTIES ARE ORDERED TO COMPLETE ALL NECESSARY INTAKE PAPERWORK AND TO SCHEDULE THE EARLIEST AVAILABLE APPOINTMENT. THE PARTIES ARE ORDERED TO FOLLOW THE TREATMENT RECOMMENDATIONS OF THE COUNSELOR INCLUDING THE DURATION AND FREQUENCY OF APPOINTMENTS.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR

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BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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3. LAURA DAVIS V. DAVID DAVIS

PFL20080484

On July 14, 2026, Respondent filed a Request for Order (RFO) seeking spousal support and attorney's fees. He filed his Income and Expense Declaration concurrently therewith. All required documents were served by mail and personally served on Petitioner's attorney. However, because this is a post-judgment request, service was required to comply with Family Code § 215. He filed and served another Income and Expense Declaration on August 6th.

On August 31st, Respondent filed a Declaration of Callie B. Cambridge. It was electronically served the same day.

Despite the defect in service, Petitioner filed and served her Responsive Declaration to Request for Order and her Income and Expense Declaration on September 3, 2026.

Respondent filed and served his reply declaration on September 9th.

Because Petitioner filed her responsive declaration, and because she did not object to the faulty service, the court finds good cause to reach this matter on its merits.

Because this is a post-judgment request to amend spousal support, the court is required to take evidence on and address the Family Code § 4320 factors. However, as a threshold issue to that, the moving party must show that there has been a material change in circumstances to warrant a change in support. In re Marriage of Kuppinger, 48 Cal. App. 3d 628 (1975).

Here, the court does find that Respondent has sufficiently established a change in circumstances given his recent retirement and corresponding drop in income. Accordingly, the parties are ordered to appear to select trial and mandatory settlement conference dates.

The request for attorney's fees is denied due to Respondent's failure to specify the amount of fees sought.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #3: THE PARTIES ARE ORDERED TO APPEAR TO SELECT TRIAL AND MANDATORY SETTLEMENT CONFERENCE DATES.